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MAGENTO PROJECT AGREEMENT

This Magento Project Agreement (this “Agreement”) effective this __09th____day of__April_, 2026 (“Effective Date”), made by and between:

Exinent LLC, a limited liability corporation organized and existing under the laws of the State of North Carolina, with an address of 800 Park Offices Dr, Suite #3410, Durham, North Carolina 27560 (hereinafter referred as “Exinent”); and Southeaster Performance Apparel with an address of 142 S Woodburn Dr, Dothan, AL 36305 , (hereinafter referred as “Customer”).

Exinent and Customer may be collectively referred to as the “Parties” or individually as a “Party.”

Background

WHEREAS, Magento Enterprise and Community Software is an e-commerce platform intended to help businesses promote, sell, and market their products online (“Magento”);

WHEREAS, Exinent is engaged in the business of designing, developing, and managing e-commerce websites and providing support services associated with Magento; and

WHEREAS, Customer desires to have Exinent development and consult on Customer’s Magento e-commerce website as listed on Exhibit A of this Agreement (“Customer Website”).

NOW, THEREFORE, for and in consideration of the promises, mutual covenants and conditions contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto hereby agree as follows:

1. SERVICES

1.1 Subject to section 1.2, Exinent agrees to provide the following services to "Customer" (the “Services”):

1.1.1 Design implementation;

1.1.2 Development and Testing;

1.1.3 Extensions installation;

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1.1.4 API integrations;

1.1.5 Customizations; and

1.1.6 Bug fixes.

1.2 Exinent shall have no obligation to support versions of Magento Software other than the current and immediately previous major releases which are currently being used, altered, or modified Magento Software, and software not installed on Supported Systems. Exinent shall also not be responsible for problems caused by Customer's negligence, misuse, hardware malfunction, or Customer's use of Magento Software inconsistent with Magento's/Adobe Commerce best practices or Exinent's instructions.

1.3 The Parties agree that the current Magento/Adobe Commerce Software being used will be UPGRADED to: M2.4.7 - P3 (latest stable version release at time of contract)

2. CHANGE IN SERVICES

2.1 Either party may request changes to the Services in accordance with a mutually agreed change request which sets forth details regarding the requested change and any applicable adjustment to fees and schedule ("Change Request"). However, Exinent is not required to perform any Services described in the Change Request unless both parties agree to it in writing.

3. INVOICE AND BILLING

3.1 In exchange for the Services in Exhibit A of this Agreement, Customer agrees to pay each milestone upon completion of each phase. Payment shall be due upon receipt of the invoice for services rendered under Exhibit A.

3.2 Exinent may incur costs (including but not limited to travel, lodging, and other costs incidental to the Services) for which it shall be reimbursed by the Customer. Exinent will obtain approval from the Customer prior to incurring such costs.

3.3 Except for the costs outlined herein, each Party shall be responsible for all costs and expenses incurred by incurring Party in performing its obligations or exercising its rights under this Agreement.

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4. TERM AND TERMINATION

4.1 This Agreement commenced on the Effective Date and shall continue in effect for the duration of the project (the "Term") or until terminated in accordance with this Agreement.

4.2 Notwithstanding whatever may be provided herein to the contrary, this Agreement may be terminated at any time, without payment of any penalty by the delivery of a termination notice to the non-terminating party. The termination shall take effect thirty (30) days after the issuance of the notice to terminate.

4.3 If the Customer terminates this Agreement before the end of the Term, Customer shall be liable to pay Exinent the total contract sum for the duration of the Term.

4.4 Within ten (10) days after the termination or expiration of this Agreement, each party shall return to the other all Proprietary or Confidential Information of the other party (and any copies thereof) in the party's possession or, with the approval of the party, destroy all such Proprietary or Confidential Information.

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5. CONFIDENTIALITY

5.1 The parties agree to hold each other's Proprietary or Confidential Information in strict confidence. “Proprietary or Confidential Information” shall include, but is not limited to, written or oral contracts, trade secrets, know-how, business methods, business policies, memoranda, reports, records, computer retained information, notes, or financial information. Proprietary or Confidential Information shall not include any information which: (i) is or becomes generally known to the public by any means other than a breach of the obligations of the receiving party; (ii) was previously known to the receiving party or rightly received by the receiving party from a third party; (iii) is independently developed by the receiving party; or (iv) is subject to disclosure under court order or other lawful process. The parties agree not to make each other's Proprietary or Confidential Information available in any form to any third party or to use each other's Proprietary or Confidential Information for any purpose other than as specified in this Agreement. Each party's Proprietary or Confidential Information shall remain the sole and exclusive property of that party. The parties agree that in the event of use or disclosure by the other party other than as specifically provided for in this Agreement, the non-disclosing party may be entitled to equitable relief. Notwithstanding termination or expiration of this Agreement, Secretary and Client acknowledge and agree that their obligations of confidentiality with respect to Proprietary or Confidential Information shall continue in effect for a total period of three (3) years from the Effective Date.

6. REPRESENTATIONS AND WARRANTIES

6.1 Customer warrants and represents that any and all software, content and images provided to Exinent are either owned by Customer or Customer has obtained the appropriate approvals and is hereby legally authorized to grant Exinent the use of such materials on their behalf.

6.2 Customer represents that it will work with Exinent to ensure Exinent can carry out the Services pursuant to Section 1, Exhibit A

6.3 Exinent represents and warrants that it will perform all services under Section 1 in a professional and workmanlike manner in accordance with generally accepted industry standards, practices, and principles applicable to such services and shall be responsible for the professional quality, accuracy and completeness required under this Agreement.

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7. LIMITATION OF LIABILITY

7.1 Except as specifically provided for in this Agreement, there are no warranties with respect to Services, express or implied, including, but not limited to any implied warranty of merchantability, fitness for a particular purpose, title or non-infringement and the services is delivered on an "as is" basis.

7.2 In no event shall exinent be liable to the other party for consequential, incidental, special, punitive, or exemplary damages arising out of or related to the transaction contemplated under this agreement, including but not limited to lost profits or loss of business, even if a exinent is apprised of the likelihood of such damages occurring. this limitation will apply even if the remedies available in this agreement have failed of their essential purpose.

7.3 Notwithstanding anything to the contrary in this agreement, in no event shall exinent's total aggregate liability arising out of or related to this agreement, whether incurred with respect to one claim, or cumulatively incurred from multiple related or unrelated claims arising under this agreement from time to time, and whether in contract, tort or under any other theory of liability, exceed an amount equal to the total amounts paid by client to exinent during the six (6) month period prior to the event giving rise to the first claim brought hereunder.

8. GOVERNING LAW

8.1 North Carolina law governs this Agreement.

8.2 Any suit, action or proceeding seeking to enforce any provision of, or based on any matter arising out of or in connection with, this Agreement or the transactions contemplated hereby may be brought in any federal or state court located in the County and State of North Carolina, and each of the parties hereby consents to the jurisdiction of such courts (and of the appropriate appellate courts therefrom) in any such suit, action or proceeding and irrevocably waives, to the fullest extent permitted by law, any objection which it may now or hereafter have to the laying of the venue of any such suit, action or proceeding in any such court or that any such suit, action or proceeding which is brought in any such court has been brought in an inconvenient forum. Process in any such suit, action or proceeding may be served on any party anywhere in the world, whether within or without the jurisdiction of any such court. Without limiting the foregoing, each party agrees that service of process on such a party as provided herein shall be deemed effective service of process on such party.

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9. ATTORNEYS' FEES

9.1 In the event that any action is instituted by Exinent under this Agreement to enforce or interpret any of the terms hereof, Exinent shall be entitled to be paid all court costs and expenses, including reasonable attorneys' fees, incurred by Exinent with respect to such action, unless as a part of such action, the court of competent jurisdiction determines that each of the material assertions made by Exinent as a basis for such action were not made in good faith or were frivolous. In the event of an action instituted by or in the name of the Customer under this Agreement or to enforce or interpret any of the terms of this Agreement, Exinent shall be entitled to be paid all court costs and expenses, including attorneys' fees, incurred by Exinent in defense of such action (including with respect to Exinent's counterclaims and cross-claims made in such action), unless as a part of such action the court determines that each of Exinent's material defenses to such action were made in bad faith or were frivolous.

10. WAIVER

10.1 The failure of either Party to insist upon strict performance of any of the covenants or agreements contained herein, or to exercise any option or right conferred herein, in any one or more instances, shall not be construed to be a waiver or relinquishment of any such option or right, or of any other covenants or agreements, but the same shall be and remain in full force and effect.

11. MERGER AND MODIFICATION

11.1 This Agreement constitutes the entire agreement, written or verbal, between the Parties with respect to the subject matter contained in this Agreement, and there are no representations, inducements, promises or agreements, oral or otherwise, not embodied or referred to herein. This
Agreement may not be amended except in writing signed by duly authorized representatives of the Parties.

12. VALIDITY AND SEVERABILITY

12.1 If any provision of this Agreement is held to be invalid, void or unenforceable for any reason, the remaining provisions shall continue in full force and effect without being impaired or invalidated in any way.

13. INDEPENDENT CONTRACTOR

13.1 The Parties hereto expressly understand Exinent is an independent contractor in the performance of each and every part of this Agreement. Both Parties are solely responsible for all of their employees and agents and their labor costs and expenses arising in connection therewith. Neither Party nor its agents or employees are the representatives of the other Party for any purpose and neither Party has the power or authority as agent, employee or in any other capacity to represent, act for, bind or otherwise create or assume any obligation on behalf of the other Party for any purpose whatsoever.

14. FORCE MAJEURE

14.1 Neither Party will be responsible for delays or failure of performance that are due in whole or in substantial part to any cause beyond the reasonable control and without fault of the delaying Party or its subcontractors, agents, or suppliers, including acts of God, failure of telephone lines or telephone equipment, strikes, walkouts, riots, acts of war, epidemics, failure of suppliers to perform, governmental regulations, court orders, Internet service provider problems due to attack or otherwise, power failures, computer malfunctions, or earthquakes, hurricanes, floods or other disasters.

15. INDEMNIFICATION

15.1 Customer agrees to indemnify Exinent from and against all claims, losses, or damages resulting from reliance by contractor on any warranties or representations of Customer, including any intellectual property rights claims as a result of Customer's violation of Section 5 of this Agreement.

16. NON-SOLICITATION

16.1 During the term of this Agreement and for one (1) year thereafter, Customer shall not attempt to solicit the services for employment or otherwise grant employment to any employee of Exinent and its subsidiaries or contractors without the prior written consent of Exinent. The foregoing shall not be deemed to include responses to general solicitations of employment (whether through advertisements, recruiting firms or other means) not specifically directed toward Exinent employees.

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17. ORDER OF PRECEDENCE

17.1 This Agreement shall consist of the terms and conditions herein, and including Exhibits A. In case there is any conflict or inconsistency between Exhibits and the terms and conditions, Exhibits shall prevail.

IN WITNESS WHEREOF, Customer and Exinent have executed this Agreement on the day and date as first above written.

Customer:	**Exinent:**
Name: Craig Langslet	Name: _____
Title: _____	Title: _____
Signature: _____	Signature: _____
Date: _____	Date: _____

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Exhibit A:

Magento Upgrade to Magento Version 2.4.8:

- All extensions, both custom and third-party, will be analyzed and determined if needed, and upgraded or made compatible with Magento 2.4.8 (Exinent will determine if "enabled" extensions are required during upgrade, as well.)
- We will review and upgrade only "enabled' extensions. This will help eliminate unused "disabled" extensions from the site to enhance overall speed and performance. Exinent will recommend any extensions that do not have a compatible Magento 2.4.8 extension upgrade in the marketplace.
- All work will be done on the Dev Server, and after "User Acceptance Testing" is approved by the Client, we will perform a mock live, and will coordinate pushing the upgraded code to the Production Server.
- All aspects of upgrading to Magento 2.4.8, upgrading PHP Versions, etc., are included in this project.
- Testing and coordinating Go-Live is included in the scope of this project.
- Exinent will upgrade the current site to Magento 2.4.8 and keep all existing functionality, custom extensions, and all enabled extensions, ensure they are working properly, and provide the site to the Phoenix-Tape team for User Acceptance Testing.
- Exinent will resolve any tickets/issues that are found during User Acceptance Testing.
- Exinent will resolve issues found during UAT, and all testing, coordinating Go Live, and post Go Live testing is included in the cost of the upgrade.

WordPress Upgrade to Version 6.9.1:

- WordPress theme and all Plugins will be analyzed and determined if needed, and upgraded or made compatible with WordPress version 6.9.1.
- All work will be done on the Dev Server along with the Magento upgrade 2.4.8.

  Note: We will require credentials for all paid Magento extensions/WordPress plugins. If you do not have extension account access or are unable to download the latest version, extensions need to be purchased.

Additional/New Requirements:

- The client wants to upload the order proof from the backend, and this proof should be visible in the customer's account dashboard so that the customer can verify the print before placing a reorder.
  >> To address this requirement, we will implement a custom module.

- Display the proof image in place of the main product image on the cart page when the customer reorders the same print.
  >> This requires changes to Magento's core functionality, so we will proceed with the alternate solution, which is to add a proof link on the cart page during reorder.

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Timeline:

1. After the agreement is signed, Exinent will request Extension credentials for paid extensions. The quicker we get the credentials for the paid extensions, the quicker we can complete the project/upgrade.
2. Exinent will initiate the upgrade at the server level by installing the latest version of Magento 2.4.8, upgrading WordPress 6.9.1, upgrading the PHP version, and other necessary server-level upgrades.
3. Exinent will install/upgrade extensions that need upgrading for compatibility with Magento 2.4.8, and Plugins for WordPress 6.9.1.
4. Exinent will ensure and make compatible all custom extensions for Magento 2.4.8, and custom Plugins for WordPress 6.9.1.
5. Exinent will test site functionality, matching existing site functionality.
6. Exinent will hand over the site to Client for UAT -- approx 6-8 weeks after project start.
7. Exinent will resolve any issues identified by the Client team during UAT.
8. Exinent will choose Go Live Date with Client team.
9. Exinent will do a couple of dry runs of pushing the upgrade live.
10. Exinent will Go Live with upgraded site early AM EST (1 AM EST - 2 AM EST).
11. Exinent will perform thorough post Go Live testing and return a report of testing and confirm functionality is working.

Total Timeline to Complete Upgrade = 3 months

***This is usually dependent on the speed of UAT testing by the client, and providing credentials for extensions promptly.

- Magento's current version is 2.3.7, and it will be upgraded to version 2.4.8.
- WordPress's current version is 5.8.7, and it will be upgraded to version 6.9.1.

Total Costs and Payment Terms for Magento 2.4.8 Upgrade and WordPress Version Upgrade 6.9.1:

The Magento upgrade is estimated at 110 hours and the WordPress upgrade at 32 hours, bringing the total to 142 hours.

Total Hours and Cost = 142 Hours = $14,200.
Revised Cost after applying a 15% discount - 12,070 USD.

Payment Terms:
50% is payable at project kick-off, with the remaining 50% due on Net 30 terms from the date of invoice.